

8. 9:00 AM CASE NUMBER: C25-02433
CASE NAME: FTX RECOVERY TRUST, VS. ARMANINO LLP
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT
FILED BY: ARMANINO LLP
TENTATIVE RULING:

Off Calendar. (See Joint Notice of Settlement filed 4/22/26.)

9. 9:00 AM CASE NUMBER: C25-02433
CASE NAME: FTX RECOVERY TRUST, VS. ARMANINO LLP
HEARING ON DEMURRER TO: PLAINTIFF'S COMPLAINT (TO BE FILED BY DEFENDANTS AS THEY
STIPULATED)
FILED BY:
TENTATIVE RULING:

Off Calendar. (See Joint Notice of Settlement filed 4/22/26.)

10. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: CSW CONSTRUCTION GROUP
TENTATIVE RULING:

Before the Court is Defendant CWS Construction Group's Motion to set Aside Default.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered that same date. On January 23, 2026, Defendant filed the instant motion to set aside.

The Court's docket shows Plaintiff filed her Opposition on March 20. No proof of service has been filed, however. Proof of service of papers must be filed with the Court at least five days prior to the hearing. (Cal. R. Ct. 3.1300(c).) Defendant on Reply notes that it was not served with the Opposition.